

Attorney fees and Costs

Plaintiff seeks one-third of the total settlement amount as fees, \$58,333.33, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

The Court finds that Class Counsel's request for attorneys' fees and costs of \$18,297.60 are reasonable in light of the 91.90 hours expended, the excellent results obtained, and the contingent nature of the representation.

The requested class representative incentive award of \$10,000.00 to Plaintiff is appropriate compensation for his substantial efforts in prosecuting this action. The Settlement Administration costs of \$6,500.00 to Apex Class Action Administration, LLC are approved as reasonable and necessary for the distribution of notice and administration of the Settlement.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on July 22, 2026.

19. 9:00 AM CASE NUMBER: C25-03259

CASE NAME: BRANDON WOODARD VS. RYAN KIM

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: KIM, RYAN MAXWELL

TENTATIVE RULING:

Before the Court is a motion to compel arbitration and stay the action, filed by defendants, Kaiser Foundation Health Plan, Inc., The Permanente Medical Group, Inc., Kaiser Foundation Hospitals, Kaiser Permanente Insurance Co., Ryan Maxell Kim, Doertlis Kuschel Schultze-Allen, and Sara Eskandari Larkin (collectively “Kaiser”). Kaiser’s motion is not a petition as described in the papers

because this case was already pending.

Specifically, plaintiff filed this action for medical malpractice on November 5, 2025, after attempting to serve defendants at the same address where plaintiff had successfully served the Senior Principal Claims Administrator with his notice of intent to sue. Entry to the “legal department” was denied and the facilities representative who received plaintiff’s counsel was unwilling to accept service of the arbitration demand. Accordingly, that same day, plaintiff’s counsel inserted a recounting of these events into the complaint under the title, “WAIVER OF ARBITRATION,” and proceeded to file suit in this Court. (See Complaint, ¶¶22-26.) Counsel also emailed the demand for arbitration to Kaiser that same day.

On December 30, 2025, defendants answered the complaint and on February 25, 2026, they filed this motion to compel arbitration, which is supported by a document entitled “petition,” the notice of motion and amended notices, a memorandum of points and authorities, and seven declarations (Ana B. Kimoto, Brady Hauswirth, Eric Carlile, Mayisha Woods, Colin S. Crabb, Justin D. Muro, and Yvonne M. Pierrou).

Notably, the filed Declaration of Colin S. Crabb is redacted and an unredacted copy has been lodged. California Rules of Court, Rule 2.551 (b)(1) provides that “[a] party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” Here, no motion to seal has been filed. Accordingly, the Court has not considered the contents of any document outside the public record, but declines to allow the filing of a document under seal without the requisite motion.

Plaintiff, Brandon Woodard, has filed a limited opposition to the motion and points out that both sides are currently actively engaged in arbitration. He also points out that he unsuccessfully attempted to serve the arbitration demand on the same day as this action was filed, and that the Office of the Independent Administrator has since accepted the demand.

Kaiser replies by citing the statute at issue, Code of Civil Procedure, § 1281.2. That section states, in pertinent part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy *and that a party to the agreement refuses to arbitrate that controversy*, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.

(Code Civ. Proc., § 1281.2, emphasis added.)

Here, plaintiff has sufficiently shown that he does not refuse to arbitrate, at least at this point in time.

Accordingly, **the Court stays this action and continues the hearing on this motion to April 8, 2027 at 8:30 a.m. in this Department** for a status update on arbitration. Parties shall appear (Zoom permitted) to update the Court regarding the status of arbitration.